



ARIZONA HOUSE OF REPRESENTATIVES FLOOR AMENDMENT EXPLANATION

*57th Legislature, 2nd Regular Session
Majority Research Staff*

[SB 1171](#): AHCCCS; dual enrollment; notice

BLISS FLOOR AMENDMENT

1. Adds controlling persons of behavioral health facilities to the list of persons required to be U.S. citizens or lawful permanent residents and hold a valid Level 1 fingerprint clearance card as a condition of licensure.

BLISS FLOOR AMENDMENT
HOUSE OF REPRESENTATIVES AMENDMENTS TO S.B. 1171
(Reference to HEALTH & HUMAN SERVICES S/E Committee amendment)

Amendment instruction key:

[GREEN UNDERLINING IN BRACKETS] indicates text added to statute or previously enacted session law.

[Green underlining in brackets] indicates text added to new session law or text restoring existing law.

[~~GREEN STRIKEOUT IN BRACKETS~~] indicates new text removed from statute or previously enacted session law.

[~~Green strikeout in brackets~~] indicates text removed from existing statute, previously enacted session law or new session law.

<<Green carets>> indicate a section added to the bill.

<<~~Green strikeout in carets~~>> indicates a section removed from the bill.

1 The bill as proposed to be amended is reprinted as follows:

2 Strike everything after the enacting clause and insert:

3 "Section 1. Title 36, chapter 4, article 1, Arizona Revised
4 Statutes, is amended by adding section 36-411.02, to read:

5 36-411.02. Behavioral health facilities; fingerprint
6 clearance cards

7 BEGINNING JANUARY 1, 2027, AS A CONDITION OF LICENSURE OR CONTINUED
8 LICENSURE OF THE FOLLOWING HEALTH CARE INSTITUTIONS, EACH APPLICANT,
9 LICENSEE[,] [AND] OWNER [AND CONTROLLING PERSON] OF THE HEALTH CARE
10 INSTITUTION, OR IN THE CASE OF A NONPROFIT HEALTH CARE INSTITUTION THAT
11 DOES NOT HAVE AN OWNER, EACH APPLICANT, EACH LICENSEE AND THE PRINCIPAL
12 OFFICER OR EXECUTIVE DIRECTOR, SHALL BE A UNITED STATES CITIZEN OR A
13 LAWFUL PERMANENT RESIDENT OF THE UNITED STATES AND HAVE A VALID
14 FINGERPRINT CLEARANCE CARD ISSUED PURSUANT TO SECTION 41-1758.07:

15 1. AN OUTPATIENT TREATMENT CENTER THAT PROVIDES ONLY BEHAVIORAL
16 HEALTH SERVICES.

17 2. A BEHAVIORAL HEALTH INPATIENT FACILITY.

18 3. A BEHAVIORAL HEALTH RESIDENTIAL FACILITY.

19 4. A COUNSELING FACILITY.

20 5. A SUBSTANCE ABUSE TRANSITIONAL FACILITY.

21 6. A BEHAVIORAL HEALTH SPECIALIZED TRANSITIONAL FACILITY.

22 Sec. 2. Section 41-619.51, Arizona Revised Statutes, is amended to
23 read:

24 41-619.51. Definitions

25 In this article, unless the context otherwise requires:

26 1. "Agency" means the supreme court, the department of economic
27 security, the department of child safety, the department of education, the
28 department of health services, the department of juvenile corrections, the
29 department of emergency and military affairs, the department of public
30 safety, the department of transportation, the state real estate
31 department, the department of insurance and financial institutions, the
32 Arizona game and fish department, the Arizona department of agriculture,

1 the board of examiners of nursing care institution administrators and
2 assisted living facility managers, the state board of dental examiners,
3 the Arizona state board of pharmacy, the board of physical therapy, the
4 state board of psychologist examiners, the board of athletic training, the
5 board of occupational therapy examiners, the state board of podiatry
6 examiners, the acupuncture board of examiners, the state board of
7 technical registration, the board of massage therapy, the board of
8 behavioral health examiners or the Arizona department of housing.

9 2. "Board" means the board of fingerprinting.

10 3. "Central registry exception" means notification to the
11 department of economic security, the department of child safety or the
12 department of health services, as appropriate, pursuant to section
13 41-619.57 that the person is not disqualified because of a central
14 registry check conducted pursuant to section 8-804.

15 4. "Expedited review" means an examination, in accordance with
16 board rule, of the documents an applicant submits by the board or its
17 hearing officer without the applicant being present.

18 5. "Good cause exception" means the issuance of a fingerprint
19 clearance card to an employee pursuant to section 41-619.55.

20 6. "Person" means a person who is required to be fingerprinted
21 pursuant to this article or who is subject to a central registry check and
22 any of the following:

- 23 (a) Section 3-314.
- 24 (b) Section 8-105.
- 25 (c) Section 8-322.
- 26 (d) Section 8-463.
- 27 (e) Section 8-509.
- 28 (f) Section 8-802.
- 29 (g) Section 8-804.
- 30 (h) Section 15-183.
- 31 (i) Section 15-503.
- 32 (j) Section 15-512.
- 33 (k) Section 15-534.
- 34 (l) Section 15-763.01.
- 35 (m) Section 15-782.02.
- 36 (n) Section 15-1330.
- 37 (o) Section 15-1881.
- 38 (p) Section 17-215.
- 39 (q) Section 28-3228.
- 40 (r) Section 28-3413.
- 41 (s) Section 32-122.02.
- 42 (t) Section 32-122.05.
- 43 (u) Section 32-122.06.
- 44 (v) Section 32-823.
- 45 (w) Section 32-1232.
- 46 (x) Section 32-1276.01.
- 47 (y) Section 32-1284.
- 48 (z) Section 32-1297.01.

1 (aa) Section 32-1904.
2 (bb) Section 32-1941.
3 (cc) Section 32-1982.
4 (dd) Section 32-2022.
5 (ee) Section 32-2063.
6 (ff) Section 32-2108.01.
7 (gg) Section 32-2123.
8 (hh) Section 32-2371.
9 (ii) Section 32-3271.
10 (jj) Section 32-3430.
11 (kk) Section 32-3620.
12 (ll) Section 32-3668.
13 (mm) Section 32-3669.
14 (nn) Section 32-3922.
15 (oo) Section 32-3924.
16 (pp) Section 32-4128.
17 (qq) Section 32-4222.
18 (rr) Section 36-113.
19 (ss) Section 36-207.
20 (tt) Section 36-411.
21 (uu) SECTION 36-411.02.
22 ~~(uu)~~ (vv) Section 36-425.03.
23 ~~(vv)~~ (ww) Section 36-446.04.
24 ~~(ww)~~ (xx) Section 36-594.01.
25 ~~(xx)~~ (yy) Section 36-594.02.
26 ~~(yy)~~ (zz) Section 36-766.01.
27 ~~(zz)~~ (aaa) Section 36-882.
28 ~~(aaa)~~ (bbb) Section 36-883.02.
29 ~~(bbb)~~ (ccc) Section 36-897.01.
30 ~~(ccc)~~ (ddd) Section 36-897.03.
31 ~~(ddd)~~ (eee) Section 36-1940.
32 ~~(eee)~~ (fff) Section 36-1940.01.
33 ~~(fff)~~ (ggg) Section 36-2069.
34 ~~(ggg)~~ (hhh) Section 36-3008.
35 ~~(hhh)~~ (iii) Section 41-619.53.
36 ~~(iii)~~ (jjj) Section 41-1964.
37 ~~(jjj)~~ (kkk) Section 41-1967.01.
38 ~~(kkk)~~ (lll) Section 41-1968.
39 ~~(lll)~~ (mmm) Section 41-1969.
40 ~~(mmm)~~ (nnn) Section 41-2814.
41 ~~(nnn)~~ (ooo) Section 41-4025.
42 ~~(ooo)~~ (ppp) Section 46-141, subsection A or B.
43 ~~(ppp)~~ (qqq) Section 46-321.
44 Sec. 3. Section 41-1758, Arizona Revised Statutes, is amended to
45 read:
46 41-1758. Definitions
47 In this article, unless the context otherwise requires:

1 1. "Agency" means the supreme court, the department of economic
2 security, the department of child safety, the department of education, the
3 department of health services, the department of juvenile corrections, the
4 department of emergency and military affairs, the department of public
5 safety, the department of transportation, the state real estate
6 department, the department of insurance and financial institutions, the
7 board of fingerprinting, the Arizona game and fish department, the Arizona
8 department of agriculture, the board of examiners of nursing care
9 institution administrators and assisted living facility managers, the
10 state board of dental examiners, the Arizona state board of pharmacy, the
11 board of physical therapy, the state board of psychologist examiners, the
12 board of athletic training, the board of occupational therapy examiners,
13 the state board of podiatry examiners, the acupuncture board of examiners,
14 the state board of technical registration, the board of massage therapy,
15 the board of behavioral health examiners or the Arizona department of
16 housing.

17 2. "Division" means the fingerprinting division in the department
18 of public safety.

19 3. "Electronic or internet-based fingerprinting services" means a
20 secure system for digitizing applicant fingerprints and transmitting the
21 applicant data and fingerprints of a person or entity submitting
22 fingerprints to the department of public safety for any authorized purpose
23 under this title. For the purposes of this paragraph, "secure system"
24 means a system that complies with the information technology security
25 policy approved by the department of public safety.

26 4. "Good cause exception" means the issuance of a fingerprint
27 clearance card to an applicant pursuant to section 41-619.55.

28 5. "Person" means a person who is required to be fingerprinted
29 pursuant to any of the following:

- 30 (a) Section 3-314.
- 31 (b) Section 8-105.
- 32 (c) Section 8-322.
- 33 (d) Section 8-463.
- 34 (e) Section 8-509.
- 35 (f) Section 8-802.
- 36 (g) Section 15-183.
- 37 (h) Section 15-503.
- 38 (i) Section 15-512.
- 39 (j) Section 15-534.
- 40 (k) Section 15-763.01.
- 41 (l) Section 15-782.02.
- 42 (m) Section 15-1330.
- 43 (n) Section 15-1881.
- 44 (o) Section 17-215.
- 45 (p) Section 28-3228.
- 46 (q) Section 28-3413.
- 47 (r) Section 32-122.02.
- 48 (s) Section 32-122.05.

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1 (t) Section 32-122.06.
2 (u) Section 32-823.
3 (v) Section 32-1232.
4 (w) Section 32-1276.01.
5 (x) Section 32-1284.
6 (y) Section 32-1297.01.
7 (z) Section 32-1904.
8 (aa) Section 32-1941.
9 (bb) Section 32-1982.
10 (cc) Section 32-2022.
11 (dd) Section 32-2063.
12 (ee) Section 32-2108.01.
13 (ff) Section 32-2123.
14 (gg) Section 32-2371.
15 (hh) Section 32-3271.
16 (ii) Section 32-3430.
17 (jj) Section 32-3620.
18 (kk) Section 32-3668.
19 (ll) Section 32-3669.
20 (mm) Section 32-3922.
21 (nn) Section 32-3924.
22 (oo) Section 32-4128.
23 (pp) Section 32-4222.
24 (qq) Section 36-113.
25 (rr) Section 36-207.
26 (ss) Section 36-411.
27 (tt) SECTION 36-411.02.
28 ~~(ttt)~~ (uu) Section 36-425.03.
29 ~~(uuu)~~ (vv) Section 36-446.04.
30 ~~(vvv)~~ (ww) Section 36-594.01.
31 ~~(www)~~ (xx) Section 36-594.02.
32 ~~(xxx)~~ (yy) Section 36-766.01.
33 ~~(yyy)~~ (zz) Section 36-882.
34 ~~(zzz)~~ (aaa) Section 36-883.02.
35 ~~(aaa)~~ (bbb) Section 36-897.01.
36 ~~(bbb)~~ (ccc) Section 36-897.03.
37 ~~(ccc)~~ (ddd) Section 36-1940.
38 ~~(ddd)~~ (eee) Section 36-1940.01.
39 ~~(eee)~~ (fff) Section 36-2069.
40 ~~(fff)~~ (ggg) Section 36-3008.
41 ~~(ggg)~~ (hhh) Section 41-619.52.
42 ~~(hhh)~~ (iii) Section 41-619.53.
43 ~~(iii)~~ (jjj) Section 41-1964.
44 ~~(jjj)~~ (kkk) Section 41-1967.01.
45 ~~(kkk)~~ (lll) Section 41-1968.
46 ~~(lll)~~ (mmm) Section 41-1969.
47 ~~(mmm)~~ (nnn) Section 41-2814.
48 ~~(nnn)~~ (ooo) Section 41-4025.

1 ~~(ooo)~~ (ppp) Section 46-141, subsection A or B.
2 ~~(ppp)~~ (qqq) Section 46-321.
3 6. "Rap back services" has the same meaning prescribed in section
4 41-1750.
5 7. "Vulnerable adult" has the same meaning prescribed in section
6 13-3623.
7 Sec. 4. Section 41-1758.01, Arizona Revised Statutes, is amended to
8 read:
9 41-1758.01. Fingerprinting division; powers and duties
10 A. The fingerprinting division is established in the department of
11 public safety and shall:
12 1. Conduct fingerprint background checks for persons and applicants
13 who are seeking licenses from state agencies, employment with licensees,
14 contract providers and state agencies or employment or educational
15 opportunities with agencies that require fingerprint background checks
16 pursuant to sections 3-314, 8-105, 8-322, 8-463, 8-509, 8-802, 15-183,
17 15-503, 15-512, 15-534, 15-763.01, 15-782.02, 15-1330, 15-1881, 17-215,
18 28-3228, 28-3413, 32-122.02, 32-122.05, 32-122.06, 32-823, 32-1232,
19 32-1276.01, 32-1284, 32-1297.01, 32-1904, 32-1941, 32-1982, 32-2022,
20 32-2063, 32-2108.01, 32-2123, 32-2371, 32-3271, 32-3430, 32-3620, 32-3668,
21 32-3669, 32-3922, 32-3924, 32-4128, 32-4222, 36-113, 36-207, 36-411,
22 36-411.02, 36-425.03, 36-446.04, 36-594.01, 36-594.02, 36-766.01, 36-882,
23 36-883.02, 36-897.01, 36-897.03, 36-1940, 36-1940.01, 36-2069, 36-3008,
24 41-619.52, 41-619.53, 41-1964, 41-1967.01, 41-1968, 41-1969, 41-2814 and
25 41-4025, section 46-141, subsection A or B and section 46-321.
26 2. Issue fingerprint clearance cards. On issuance, a fingerprint
27 clearance card becomes the personal property of the cardholder and the
28 cardholder shall retain possession of the fingerprint clearance card.
29 3. On submission of an application for a fingerprint clearance
30 card, collect the fees established by the board of fingerprinting pursuant
31 to section 41-619.53 and deposit, pursuant to sections 35-146 and 35-147,
32 the monies collected in the board of fingerprinting fund.
33 4. Inform in writing each person who submits fingerprints for a
34 fingerprint background check of the right to petition the board of
35 fingerprinting for a good cause exception pursuant to section 41-1758.03,
36 41-1758.04 or 41-1758.07.
37 5. If after conducting a state and federal criminal history records
38 check the division determines that it is not authorized to issue a
39 fingerprint clearance card to a person, inform the person in writing that
40 the division is not authorized to issue a fingerprint clearance card. The
41 notice shall include the criminal history information on which the denial
42 was based. This criminal history information is subject to dissemination
43 restrictions pursuant to section 41-1750 and Public Law 92-544.
44 6. Notify the person in writing if the division suspends, revokes
45 or places a driving restriction notation on a fingerprint clearance card
46 pursuant to section 41-1758.04. The notice shall include the criminal
47 history information on which the suspension, revocation or placement of
48 the driving restriction notation was based. This criminal history

1 information is subject to dissemination restrictions pursuant to section
2 41-1750 and Public Law 92-544.

3 7. Administer and enforce this article.

4 B. The fingerprinting division may contract for electronic or
5 internet-based fingerprinting services through an entity or entities for
6 the acquisition and transmission of applicant fingerprint and data
7 submissions to the department, including identity verified fingerprints
8 pursuant to section 15-106. The entity or entities contracted by the
9 department of public safety may charge the applicant a fee for services
10 provided pursuant to this article. The entity or entities contracted by
11 the department of public safety shall comply with:

12 1. All information privacy and security measures and submission
13 standards established by the department of public safety.

14 2. The information technology security policy approved by the
15 department of public safety.

16 Sec. 5. Section 41-1758.07, Arizona Revised Statutes, is amended to
17 read:

18 41-1758.07. Level I fingerprint clearance cards; definitions

19 A. On receiving the state and federal criminal history record of a
20 person who is required to be fingerprinted pursuant to this section, the
21 division shall compare the record with the list of criminal offenses that
22 preclude the person from receiving a level I fingerprint clearance card.
23 If the person's criminal history record does not contain any of the
24 offenses listed in subsections B and C of this section, the division shall
25 issue the person a level I fingerprint clearance card.

26 B. A person who is subject to registration as a sex offender in
27 this state or any other jurisdiction or who is awaiting trial on or who
28 has been convicted of committing or attempting, soliciting, facilitating
29 or conspiring to commit one or more of the following offenses in this
30 state or the same or similar offenses in another state or jurisdiction is
31 precluded from receiving a level I fingerprint clearance card:

32 1. Sexual abuse of a vulnerable adult.

33 2. Incest.

34 3. Homicide, including first or second degree murder, manslaughter
35 and negligent homicide.

36 4. Sexual assault.

37 5. Sexual exploitation of a minor.

38 6. Sexual exploitation of a vulnerable adult.

39 7. Commercial sexual exploitation of a minor.

40 8. Commercial sexual exploitation of a vulnerable adult.

41 9. Child sex trafficking as prescribed in section 13-3212.

42 10. Child abuse.

43 11. Felony child neglect.

44 12. Abuse of a vulnerable adult.

45 13. Sexual conduct with a minor.

46 14. Molestation of a child.

47 15. Molestation of a vulnerable adult.

48 16. Dangerous crimes against children as defined in section 13-705.

- 1 17. Exploitation of minors involving drug offenses.
- 2 18. Taking a child for the purpose of prostitution as prescribed in
- 3 section 13-3206.
- 4 19. Neglect or abuse of a vulnerable adult.
- 5 20. Sex trafficking.
- 6 21. Sexual abuse.
- 7 22. Production, publication, sale, possession and presentation of
- 8 obscene items as prescribed in section 13-3502.
- 9 23. Furnishing harmful items to minors as prescribed in section
- 10 13-3506.
- 11 24. Furnishing harmful items to minors by internet activity as
- 12 prescribed in section 13-3506.01.
- 13 25. Obscene or indecent telephone communications to minors for
- 14 commercial purposes as prescribed in section 13-3512.
- 15 26. Luring a minor for sexual exploitation.
- 16 27. Enticement of persons for purposes of prostitution.
- 17 28. Procurement by false pretenses of person for purposes of
- 18 prostitution.
- 19 29. Procuring or placing persons in a house of prostitution.
- 20 30. Receiving earnings of a prostitute.
- 21 31. Causing one's spouse to become a prostitute.
- 22 32. Detention of persons in a house of prostitution for debt.
- 23 33. Keeping or residing in a house of prostitution or employment in
- 24 prostitution.
- 25 34. Pandering.
- 26 35. Transporting persons for the purpose of prostitution, polygamy
- 27 and concubinage.
- 28 36. Portraying adult as a minor as prescribed in section 13-3555.
- 29 37. Admitting minors to public displays of sexual conduct as
- 30 prescribed in section 13-3558.
- 31 38. Any felony offense involving contributing to the delinquency of
- 32 a minor.
- 33 39. Unlawful sale or purchase of children.
- 34 40. Child bigamy.
- 35 41. Any felony offense involving domestic violence as defined in
- 36 section 13-3601 except for a felony offense only involving criminal damage
- 37 in an amount of more than \$250 but less than \$1,000 if the offense was
- 38 committed before June 29, 2009.
- 39 42. Any felony offense in violation of title 13, chapter 12 if
- 40 committed within five years before the date of applying for a level I
- 41 fingerprint clearance card.
- 42 43. Felony drug or alcohol related offenses if committed within
- 43 five years before the date of applying for a level I fingerprint clearance
- 44 card.
- 45 44. Felony indecent exposure.
- 46 45. Felony public sexual indecency.
- 47 46. Terrorism.

- 1 47. Any offense involving a violent crime as defined in section
2 13-901.03.
- 3 48. Trafficking of persons for forced labor or services.
- 4 C. A person who is awaiting trial on or who has been convicted of
5 committing or attempting, soliciting, facilitating or conspiring to commit
6 one or more of the following offenses in this state or the same or similar
7 offenses in another state or jurisdiction is precluded from receiving a
8 level I fingerprint clearance card, except that the person may petition
9 the board of fingerprinting for a good cause exception pursuant to section
10 41-619.55:
- 11 1. Any misdemeanor offense in violation of title 13, chapter 12.
12 2. Misdemeanor indecent exposure.
13 3. Misdemeanor public sexual indecency.
14 4. Aggravated criminal damage.
15 5. Theft.
16 6. Theft by extortion.
17 7. Shoplifting.
18 8. Forgery.
19 9. Criminal possession of a forgery device.
20 10. Obtaining a signature by deception.
21 11. Criminal impersonation.
22 12. Theft of a credit card or obtaining a credit card by fraudulent
23 means.
- 24 13. Receipt of anything of value obtained by fraudulent use of a
25 credit card.
- 26 14. Forgery of a credit card.
- 27 15. Fraudulent use of a credit card.
- 28 16. Possession of any machinery, plate or other contrivance or
29 incomplete credit card.
- 30 17. False statement as to financial condition or identity to obtain
31 a credit card.
- 32 18. Fraud by persons authorized to provide goods or services.
- 33 19. Credit card transaction record theft.
- 34 20. Misconduct involving weapons.
- 35 21. Misconduct involving explosives.
- 36 22. Depositing explosives.
- 37 23. Misconduct involving simulated explosive devices.
- 38 24. Concealed weapon violation.
- 39 25. Misdemeanor possession and misdemeanor sale of peyote.
- 40 26. Felony possession and felony sale of peyote if committed more
41 than five years before the date of applying for a level I fingerprint
42 clearance card.
- 43 27. Misdemeanor possession and misdemeanor sale of a
44 vapor-releasing substance containing a toxic substance.
- 45 28. Felony possession and felony sale of a vapor-releasing
46 substance containing a toxic substance if committed more than five years
47 before the date of applying for a level I fingerprint clearance card.
- 48 29. Misdemeanor sale of precursor chemicals.

- 1 30. Felony sale of precursor chemicals if committed more than five
2 years before the date of applying for a level I fingerprint clearance
3 card.
- 4 31. Misdemeanor possession, misdemeanor use or misdemeanor sale of
5 marijuana, dangerous drugs or narcotic drugs.
- 6 32. Felony possession, felony use or felony sale of marijuana,
7 dangerous drugs or narcotic drugs if committed more than five years before
8 the date of applying for a level I fingerprint clearance card.
- 9 33. Misdemeanor manufacture or misdemeanor distribution of an
10 imitation controlled substance.
- 11 34. Felony manufacture or felony distribution of an imitation
12 controlled substance if committed more than five years before the date of
13 applying for a level I fingerprint clearance card.
- 14 35. Misdemeanor manufacture or misdemeanor distribution of an
15 imitation prescription-only drug.
- 16 36. Felony manufacture or felony distribution of an imitation
17 prescription-only drug if committed more than five years before the date
18 of applying for a level I fingerprint clearance card.
- 19 37. Misdemeanor manufacture or misdemeanor distribution of an
20 imitation over-the-counter drug.
- 21 38. Felony manufacture or felony distribution of an imitation
22 over-the-counter drug if committed more than five years before the date of
23 applying for a level I fingerprint clearance card.
- 24 39. Misdemeanor possession or misdemeanor possession with intent to
25 use an imitation controlled substance.
- 26 40. Felony possession or felony possession with intent to use an
27 imitation controlled substance if committed more than five years before
28 the date of applying for a level I fingerprint clearance card.
- 29 41. Misdemeanor possession or misdemeanor possession with intent to
30 use an imitation prescription-only drug.
- 31 42. Felony possession or felony possession with intent to use an
32 imitation prescription-only drug if committed more than five years before
33 the date of applying for a level I fingerprint clearance card.
- 34 43. Misdemeanor possession or misdemeanor possession with intent to
35 use an imitation over-the-counter drug.
- 36 44. Felony possession or felony possession with intent to use an
37 imitation over-the-counter drug if committed more than five years before
38 the date of applying for a level I fingerprint clearance card.
- 39 45. Misdemeanor manufacture of certain substances and drugs by
40 certain means.
- 41 46. Felony manufacture of certain substances and drugs by certain
42 means if committed more than five years before the date of applying for a
43 level I fingerprint clearance card.
- 44 47. Adding poison or other harmful substance to food, drink or
45 medicine.
- 46 48. A criminal offense involving criminal trespass under title 13,
47 chapter 15.

1 49. A criminal offense involving burglary under title 13,
2 chapter 15.

3 50. A criminal offense under title 13, chapter 23, except
4 terrorism.

5 51. Misdemeanor offenses involving child neglect.

6 52. Misdemeanor offenses involving contributing to the delinquency
7 of a minor.

8 53. Misdemeanor offenses involving domestic violence as defined in
9 section 13-3601.

10 54. Felony offenses involving domestic violence if the offense only
11 involved criminal damage in an amount of more than \$250 but less than
12 \$1,000 and the offense was committed before June 29, 2009.

13 55. Arson.

14 56. Felony offenses involving sale, distribution or transportation
15 of, offer to sell, transport or distribute or conspiracy to sell,
16 transport or distribute marijuana, dangerous drugs or narcotic drugs if
17 committed more than five years before the date of applying for a level I
18 fingerprint clearance card.

19 57. Criminal damage.

20 58. Misappropriation of charter school monies as prescribed in
21 section 13-1818.

22 59. Taking identity of another person or entity.

23 60. Aggravated taking identity of another person or entity.

24 61. Trafficking in the identity of another person or entity.

25 62. Cruelty to animals.

26 63. Prostitution as prescribed in section 13-3214.

27 64. Sale or distribution of material harmful to minors through
28 vending machines as prescribed in section 13-3513.

29 65. Welfare fraud.

30 66. Any felony offense in violation of title 13, chapter 12 if
31 committed more than five years before the date of applying for a level I
32 fingerprint clearance card.

33 67. Kidnapping.

34 68. Robbery, aggravated robbery or armed robbery.

35 D. A person who is awaiting trial on or who has been convicted of
36 committing or attempting to commit a misdemeanor violation of section
37 28-1381, 28-1382 or 28-1383 in this state or the same or a similar offense
38 in another state or jurisdiction within five years after the date of
39 applying for a level I fingerprint clearance card is precluded from
40 driving any vehicle to transport employees or clients of the employing
41 agency as part of the person's employment. The division shall place a
42 notation on the level I fingerprint clearance card that indicates this
43 driving restriction. This subsection does not preclude a person from
44 driving a vehicle alone as part of the person's employment.

45 E. Notwithstanding subsection C of this section, on receiving
46 written notice from the board of fingerprinting that a good cause
47 exception was granted pursuant to section 41-619.55, the division shall
48 issue a level I fingerprint clearance card to the applicant.

1 F. If the division denies a person's application for a level I
2 fingerprint clearance card pursuant to subsection C of this section and a
3 good cause exception is requested pursuant to section 41-619.55, the
4 division shall release, on request by the board of fingerprinting, the
5 person's criminal history record to the board of fingerprinting.

6 G. A person shall be granted a level I fingerprint clearance card
7 pursuant to this section if either of the following applies:

8 1. An agency granted a good cause exception before August 16, 1999
9 and no new precluding offense is identified. The fingerprint clearance
10 card shall specify only the program that granted the good cause exception.
11 On the request of the applicant, the agency that granted the prior good
12 cause exception shall notify the division in writing of the date on which
13 the prior good cause exception was granted, the date of the conviction and
14 the name of the offense for which the good cause exception was granted.

15 2. The board granted a good cause exception and no new precluding
16 offense is identified.

17 H. The licensee or contract provider shall assume the costs of
18 fingerprint checks conducted pursuant to this section and may charge these
19 costs to persons who are required to be fingerprinted.

20 I. A person who is under eighteen years of age or who is at least
21 ninety-nine years of age is exempt from the level I fingerprint clearance
22 card requirements of this section. At all times the person shall be under
23 the direct visual supervision of personnel who have valid level I
24 fingerprint clearance cards.

25 J. The division may conduct criminal history records checks through
26 state and federal rap back services pursuant to section 41-1750,
27 subsection G for the purpose of updating the clearance status of current
28 level I fingerprint clearance cardholders pursuant to this section and may
29 notify the employing or licensing agency of the results of the records
30 check. If the division suspends a person's fingerprint clearance card and
31 the person requests a good cause exception pursuant to section 41-619.55,
32 the division shall release, on request by the board of fingerprinting, the
33 person's criminal history record to the board of fingerprinting.

34 K. The division shall revoke a person's level I fingerprint
35 clearance card on receipt of a written request for revocation from the
36 board of fingerprinting pursuant to section 41-619.55.

37 L. If a person's criminal history record contains an offense listed
38 in subsection B or C of this section and the final disposition is not
39 recorded on the record, the division shall conduct research to obtain the
40 disposition within thirty business days after receipt of the record. If
41 the division cannot determine, within thirty business days after receipt
42 of the person's state and federal criminal history record information,
43 whether the person is awaiting trial on or has been convicted of
44 committing or attempting, soliciting, facilitating or conspiring to commit
45 any of the offenses listed in subsection B or C of this section in this
46 state or the same or a similar offense in another state or jurisdiction,
47 the division shall not issue a level I fingerprint clearance card to the
48 person. If the division is unable to make the determination required by

1 this subsection and does not issue a level I fingerprint clearance card to
2 a person, the person may request a good cause exception pursuant to
3 section 41-619.55.

4 M. If after conducting a state and federal criminal history records
5 check the division determines that it is not authorized to issue a level I
6 fingerprint clearance card to an applicant, the division shall notify the
7 agency that the division is not authorized to issue a level I fingerprint
8 clearance card. This notice shall include the criminal history
9 information on which the denial was based. This criminal history
10 information is subject to dissemination restrictions pursuant to section
11 41-1750 and Public Law 92-544.

12 N. The division is not liable for damages resulting from:

13 1. The issuance of a level I fingerprint clearance card to an
14 applicant who is later found to have been ineligible to receive a level I
15 fingerprint clearance card at the time the card was issued.

16 2. The denial of a level I fingerprint clearance card to an
17 applicant who is later found to have been eligible to receive a level I
18 fingerprint clearance card at the time issuance of the card was denied.

19 O. Notwithstanding any law to the contrary, an individual may apply
20 for and receive a level I fingerprint clearance card pursuant to this
21 section to satisfy a requirement that the person have a valid fingerprint
22 clearance card issued pursuant to section 41-1758.03.

23 P. Notwithstanding any law to the contrary, except as prescribed
24 pursuant to subsection Q of this section, an individual who receives a
25 level I fingerprint clearance card pursuant to this section also satisfies
26 a requirement that the individual have a valid fingerprint clearance card
27 issued pursuant to section 41-1758.03.

28 Q. Unless a cardholder commits an offense listed in subsection B or
29 C of this section after June 29, 2009, a fingerprint clearance card issued
30 pursuant to section 41-1758.03 before June 29, 2009 and its renewals are
31 valid for all requirements for a level I fingerprint clearance card except
32 those relating to the requirements of section 8-105 or 8-509. A
33 fingerprint clearance card issued before June 29, 2009 to meet the
34 requirements of section 8-105 or 8-509 and its renewals are valid after
35 June 29, 2009 to meet all requirements for a level I fingerprint clearance
36 card, including the requirements of section 8-105 or 8-509, if the
37 cardholder has been certified by the court to adopt or has been issued a
38 foster home license before June 29, 2009.

39 R. The issuance of a level I fingerprint clearance card does not
40 entitle a person to employment.

41 S. For the purposes of this section:

42 1. "Person" means a person who is fingerprinted pursuant to:

43 (a) Section 3-314, 8-105, 8-463, 8-509, 8-802, 17-215, 36-207,
44 36-411.02, 36-594.01, 36-594.02, 36-882, 36-883.02, 36-897.01, 36-897.03,
45 36-1940, 36-1940.01, 36-2819, 36-2855, 41-619.52, 41-619.53, 41-1964,
46 41-1967.01, 41-1968, 41-1969 or 46-141.

47 (b) Subsection O of this section.

House Amendments to S.B. 1171

1 2. "Renewal" means the issuance of a fingerprint clearance card to
2 an existing fingerprint clearance cardholder who applies before the
3 person's existing fingerprint clearance card expires."

4 Enroll and engross to conform

5 Amend title to conform

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